

The Goa State Fire Force Subordinate Service (Discipline and Appeal) Rules, 1989

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The Goa State Fire Force Subordinate Service (Discipline and Appeal) Rules, 1989

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The Goa State Fire Force Subordinate Service (Discipline and Appeal) Rules, 1989

Rule THE-GOA-STATE-FIRE-FORCE-SUBORDINATE-SERVICE-DISCIPLINE-AND-APPEAL-RULES-1989 of 1989

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The Goa State Fire Force Subordinate Service (Discipline and Appeal) Rules, 1989

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In exercise of the powers conferred by section 35 of the Goa, Daman and Diu Fire Force Act, 1986 (Act
9 of 1986

), the Government of Goa hereby makes the following rules, namely:-

Chapter - I

1.

General.

(1)

These rules may be called the Goa State Fire Force Subordinate Service (Discipline and Appeal) Rules, 1989.

(2)

They shall come into force at once.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

'Appointing authority' in relation to any member of the service means the authority empowered to make appointments to the service of which the Government servant is for the time being a member;

(b)

'Schedule' means the Schedule annexed to these rules;

(c)

'Service' means the Goa State Fire Force Subordinate Service comprising of the Fire Officers and the personnel of the rank of Station Fire Officer and below including Wireless Operators.

3.

Classification.

- The services, the members of which are subject to these rules shall be classified as follows:-

Class I

Category I

-

Station Fire Officer

Category II

-

Assistant Station Fire Officer/Sub-Officer.

Class II

Category I

-

Leading Fireman, Telephone Operator and equivalent rank.

Category II

-

Driver Operator/Fireman Driver.

Category III

-

Motor Mechanic and equivalent rank.

Category IV

-

Fireman and equivalent rank.

Chapter-II

4.

Penalties (and Disciplinary Authorities).

(1)

The following minor and major penalties may, for good and sufficient reasons and as hereinafter provided, be imposed upon the members of the service, namely:-

Minor Penalties:

(a)

Extra drill, guard duty and fatigue duties;

(b)

Reprimand either oral or written;

(c)

Censure;

(d)

Withholding of increment or promotion or both;

(e)

Imposition of fine of any amount not exceeding one month's pay;

(f)

Recovery from pay of the whole or part of any pecuniary loss caused to Government by negligence or breach of lawful orders;

(g)

Debarring from appearing for departmental or professional examination for promotion for a specific period not exceeding two years.

Major Penalties:

(h)

Reduction to a lower time-scale of pay, grade, post or service which shall ordinarily be a bar to the promotion of the member of the service to the time-scale of pay, grade, post or service from which he was reduced, with or without further direction regarding conditions of restoration to the grade or post or service from which the member of the service was reduced and his seniority and pay on such restoration to that grade, post or service;

(i)

Suspension for a period not exceeding 15 days in the case of members of service if the penalty of reduction to a lower grade post of time-scale or to a lower stage in the same time-scale cannot be imposed;

(j)

Compulsory retirement;

(k)

Removal from service which shall not be a disqualification for future employment under the Government;

(l)

Dismissal from service which shall ordinarily be a disqualification for future employment under the Government.

Explanation 1:- The penalties which are specified in this rule are set out in the order of their severity, each one of them being more severe than the one preceding it.

Explanation 2:- The following shall not amount to a penalty within the meaning of this rule, namely:-

(i)

withholding of increments of pay of a member of service for his failure to pass any departmental examination in accordance with the rules or orders governing the service to which he belongs or post which he holds or the terms of his appointment.

(ii)

stoppage of a member of the service at the efficiency bar in the time-scale of pay on the ground of his unfitness to cross the bar;

(iii)

non-promotion of a member of the service, whether in a substantive or officiating capacity, after consideration of his case, to a service, grade or post for promotion to which he is eligible;

(iv)

reversion of a member of the service officiating in a higher service, grade or post to a lower service, grade or post, on the ground that he is considered to be unsuitable for such higher service, grade or post or on any administrative ground unconnected with his conduct;

(v)

reversion of a member of the service appointed on probation to any other service, grade or post, to his permanent service, grade or post during or at the end of the period of probation in accordance with the terms of his appointment or the rules and orders governing such probation.

(vi)

replacement of the service of a member of the service whose services had been borrowed from a State Government or an authority under the control of a State Government, at the disposal of the State Government or the authority from which the services of such a member of the service had been borrowed;

(vii)

compulsory retirement of a member of the service in accordance with the provisions relating to his superannuation or

retirement:-

(viii)

termination of services:-

(a)

of a member of the service appointed on probation, during or at the end of the period of his probation, in accordance with the terms of his appointment or the rules and orders governing such probation; or

(b)

of a member of the service, employed under an agreement in accordance with the terms of such agreement.

(2)

(a)

The penalty of reprimand mentioned at clause (b) of sub-rule (1) may be given when the offence is such as not to merit the penalty of censure.

(b)

The penalty of the censure mentioned at clause (c) of the sub-rule (1) may be given when the offence is such as to affect the character of the officer or his suitability for the service.

(c)

Deferred punishment. - Any minor penalty falling within clauses (b), (c) or (d) of sub-rule (1) can be held in abeyance when an officer has a previous good record. Such penalty may be held in abeyance by the authority competent to impose the penalty or by the authority to which the first mentioned authority is subordinate for any period ranking from three to six months at the end of which the order of punishment may be cancelled if the delinquent's conduct is found to be good while on duty during the period when the penalty is held in abeyance or such penalty may at once be confirmed. The penalty so confirmed will take effect from the date on which such penalty is originally awarded.

(d)

The penalty of recovery from the pay of the members of the service concerned of whole or part of the pecuniary loss caused to the Government by negligence or breach of lawful orders may be imposed in addition to any other penalty which may be imposed in respect of such negligence or breach of orders.

5.

Disciplinary Authorities.

(1)

The Government may impose any of the penalties specified in rule 4 on any member of the service.

(2)

Without prejudice to the provisions of sub-rule (1), but subject to the provisions of sub-rule (3), any of the penalties specified in rule 4 may be imposed on any member of the service by the appointing authority or the authority specified in the Schedule in this behalf.

(3)

Notwithstanding anything contained in this rule,- (a) extra drill, guard duty and fatigue duties may be awarded to a Fireman/Driver Operator for a period not exceeding seven days by a Divisional Officer and for a period not exceeding ten days by a Dy. Director/Dy. Chief Fire Officer and for a period not exceeding fifteen days by the Director of Fire Force/Chief Fire Officer.

Chapter-III Procedure to be followed for imposing penalties

6.

Procedure for imposing Minor Penalties.

- No order imposing on a member of the service any of the penalties specified in clauses (c) to (g) of sub-rule (1) of rule 4 shall be made except after-

(a)

informing the member of the service in writing of the proposal to take action against him and of the imputations of misconduct or misbehaviour on which it is proposed to be taken, and giving him a reasonable opportunity of making such representation as he may wish to make against the proposal;

(b)

holding an inquiry in the manner laid down in sub-rules (3) to (21) of rule 7, in every case in which the disciplinary authority is of the opinion that such inquiry is necessary;

(c)

taking the representation, if any, submitted by the member of the service under clause (a) and the record of inquiry, if any, held under clause (b) into consideration;

(d)

recording a finding on each imputation of misconduct or misbehaviour.

(2)

The record of the proceedings in such cases shall include:-

(i)

a copy of the intimation to the Government servant of the proposal to take action against him;

(ii)

a copy of the statement of imputations of misconduct or misbehaviour delivered to him;

(iii)

his representation, if any;

(iv)

the evidence produced during the inquiry;

(v)

the findings on each imputation of misconduct or misbehaviour; and

(vi)

the orders on the case together with the reasons therefore.

7.

Procedure for Imposing Major Penalties.

(1)

No order imposing any of the penalties specified in clauses (h) to (l) of sub-rule (1) of rule 4 shall be made except after an inquiry held, as far as may be, in the manner provided in this rule.

(2)

Whenever the disciplinary authority is of the opinion that there are grounds for inquiring into the truth of any imputation of misconduct or misbehaviour against a member of the service, it may itself inquire or appoint under this rule an inquiring authority to inquire into the truth thereof.

(3)

In every case where it is proposed to impose on a member of the services any of the major penalties mentioned in clauses (h) to (l) of sub-rule (1) of rule 4, the grounds on which it is proposed to take action, shall except where such action is proposed to be taken on facts which have led to his conviction in a criminal court be reduced to the form of a definite charge which shall be communicated to a person charged together with a statement of the allegation on which each charge is based and of any other circumstances in which it is proposed to take into consideration in passing orders on the case. He shall be required to put in a written statement of his defence within ten days or within such further time as the disciplinary authority permits and to state whether he desires to be heard in person.

(4)

(a)

On receipt of the written statement of defence the disciplinary authority may itself inquire into such of the articles of charge as are not admitted, or if it considers it necessary so to do, appoint, under sub-rule (2), an inquiring authority for the purpose and where all the articles of charge have been admitted by the Government servant in his written statement of defence, the disciplinary authority shall record its findings on each charge after taking such evidence as it may think fit and shall act in the manner laid down in rule 8.

(b)

If no written statement of defence is submitted by the Government servant, the disciplinary authority may itself inquire into the articles of charge or may, if it considers it necessary to do so, appoint under sub-rule (2), an inquiring authority for the purpose.

(c)

Where the disciplinary authority itself inquires into any article of charge or appoint an inquiring authority for holding an inquiry into such charge, it may, by an order appoint a member of the service to be known as the "Presenting Officer" to present on its behalf the case in support of the articles of charge.

(5)

The disciplinary authority shall, where it is not the inquiring authority forward to the inquiring authority -

(i)

a copy of the articles of charge and the statement of the imputations of misconduct or misbehaviour;

(ii)

a copy of the written statement of defence, if any, submitted by the Government servant;

(iii)

a copy of the statements of witnesses, if any, referred to in sub-rule (3);

(iv)

evidence proving the delivery of the documents referred to in sub-rule (3) to the Government servant; and

(v)

a copy of the order, if any, appointing the "Presenting Officer".

(6)

The members of the service shall appear in person before the inquiring authority on such day and at such time within ten working days from the date of receipt by him of the article of charge and the statement of the imputations of misconduct or misbehaviour, as the inquiring authority may, by a notice in writing, specify in this behalf, or within such further time, not exceeding ten days, as the inquiring authority may allow.

(7)

The member of the service may take the assistance of any other member of the service to present the case on his behalf, but may not engage a legal practitioner for the purpose unless the Presenting Officer appointed by the disciplinary authority is legal practitioner, or the disciplinary authority, having regard to the circumstances of the case, so permits.

(8)

If the member of the service who has not admitted any of the articles of charge in his written statement of defence, or has not submitted any written statement of defence, appears before the inquiring authority, such authority shall ask him whether he is guilty or has any defence to make and if he pleads guilty to any of the articles of charge, the inquiring authority shall record the plea, sign the record and obtain his signature thereon.

(9)

The inquiring authority shall return a finding of guilt in respect of those articles of charge to which the member of the service pleads guilty.

(10)

The inquiring authority shall, if the member of the service fails to appear within the specified time or refuses or omits to plead, require the Presenting Officer to produce the evidence by which he proposes to prove the articles of charge and shall adjourn the case to a later date not exceeding fifteen days, after recording an order that the member of the service may, for the purpose of preparing his defence:-

(i)

inspect within five days of the order or within such further time not exceeding five days as the inquiring authority may allow, the documents specified in the list referred to in sub-rule (3);

(ii)

submit a list of witnesses to be examined on his behalf;

Note:- If the member of the service applies orally or in writing for the supply of copies of the statements of witnesses mentioned in the list referred to in sub-rule (3), the inquiring authority shall furnish him with such copies as early as possible and in any case not later than three days before the commencement of the examination of the witnesses on behalf of the disciplinary authority;

(iii)

give notice within ten days of the order or within such further time not exceeding ten days as the inquiring authority may allow, for the discovery or production of any documents which are in the possession of Government but not mentioned in the list referred to in sub-rule (3).

Note:- The member of the service shall indicate the relevance of the document required by him to be discovered or produced by the Government.

(11)

The inquiring authority shall, on receipt of the notice for the discovery of production of documents, forward the same or copies thereof to the authority in whose custody or possession the documents are kept, with a requisition for the production of the documents by such date as may be specified in such requisition:

Provided that the inquiring authority may, for reasons to be recorded by it in writing, refuse to requisition such of the documents as are, in its opinion, not relevant to the case.

(12)

On receipt of the requisition referred to in sub-rule (3), every authority having the custody or possession of the requisitioned documents shall produce the same before the inquiring authority:

Provided that if the authority having the custody or possession of the requisitioned documents is satisfied for reasons to be recorded by it in writing that the production of all or any of such documents would be against the public interest or security of the State, it shall inform the inquiring authority accordingly and the inquiring authority shall, on being so informed, communicate the information to the member of the service and withdraw the requisition made by him for the production or discovery of such documents.

(13)

On the date fixed for the inquiry, the oral and documentary evidence by which the articles of charge are proposed to be proved shall be produced by or on behalf of the disciplinary authority. The witnesses shall be examined by or on behalf of the Presenting Officer and may be cross examined by or on behalf of the member of the service. The Presenting Officer, if any, shall be entitled to re-examine the witnesses on any points on which they have been cross-examined but not on any new matter without the leave of the inquiring authority. The inquiring authority may also put such questions to the witnesses as it thinks fit.

(14)

If it shall appear necessary before the close of the case on behalf of the disciplinary authority, the inquiring authority may, in its discretion, allow the Presenting Officer if any to produce evidence not included in the list given to the member of the service or may itself call for new evidence or recall and re-examine any witness and in such case the member of the service shall be entitled to have, if he demands it, a copy of the list of further evidence proposed to be produced and an adjournment of the inquiry for three clear days before the production of such new evidence, exclusive of the day of adjournment and the day to which the inquiry is adjourned. The inquiring authority shall give the member of the service an opportunity of inspecting such documents before they are taken on the record. The inquiring authority may also allow the member of the service to produce new evidence if it is of the opinion that the production of such evidence is necessary in the interests of justice.

Note:- New evidence shall not be permitted or called for or any witness shall not be recalled to fill up any gap in the evidence. Such evidence may be called for only when there is an inherent lacuna or defect in the evidence which has been produced originally.

(15)

When the case for the disciplinary authority is closed, the member of the service shall be required to state the defence orally or in writing, as he may prefer. If the defence is made orally, it shall be recorded and the member of the service shall be required to sign the record. In either case, a copy of the statement of defence shall be given to the Presenting Officer, if any, appointed.

(16)

The evidence on behalf of the member of the service shall then be produced. The member of the service may examine himself in his own behalf, if he so prefers. The witnesses produced by the member of the service shall then be examined by the inquiring authority according to the provisions applicable to the witnesses for the disciplinary authority.

(17)

The inquiring authority may, after the member of the services closes his case, and shall, if the member of the service has not examined himself, generally question him on the circumstances appearing against him in the evidence for the purpose of enabling the member of the service to explain any circumstances appearing in the evidence against him.

(18)

The inquiring authority may, after the completion of the production of evidence, hear the Presenting Officer, if any, appointed and the member of the service or permit them to file written briefs of their respective case, if they so desire.

(19)

If the member of the service to whom a copy of the articles of charge has been delivered, does not submit the written

statement of defence on or before the date specified for the purpose or does not appear in person before the inquiring authority or otherwise fails or refuses to comply with the provisions of this rule, the inquiring authority may hold the inquiry ex-parte.

(20)

Whenever any inquiring authority after having heard and recorded the whole or any part of the evidence in an inquiry, ceases to exercise jurisdiction therein, and is succeeded by another inquiring authority which has, and which exercises, such jurisdiction, the inquiring authority so succeeding may act on the evidence so recorded by its predecessor, or partly recorded by its predecessor and partly recorded by itself:

Provided that if the succeeding inquiry, authority is of the opinion that further examination of any of the witnesses whose evidence has already been recorded is necessary in the interest of justice, it may recall, examine, cross-examine and re-examine any such witnesses as hereinbefore provided.

(21)

(i)

After the conclusion of the inquiry a report shall be prepared and it shall contain-

(a)

the articles of charge and the statement of the imputations of misconduct or misbehaviour;

(b)

the defence of the member of the service in respect of each article of charge;

(c)

an assessment of the evidence in respect of each article of charge;

(d)

the findings of each article of charge and the reasons therefor.

Explanation:- If in the opinion of the inquiring authority the proceedings of the inquiry establish any article of charge different from the original articles of the charge, it may record its findings on such article of charge:

Provided that the findings on such article of charge shall not be recorded unless the member of the service has either admitted the facts on which such article of charge is based or has had a reasonable opportunity of defending himself against such article of charge.

(ii)

The inquiring authority, where it is not itself the disciplinary authority shall forward to the disciplinary authority the records of inquiry which shall include-

(a)

the report prepared by it under clause (i);

(b)

the written statement of defence, if any, submitted by the member of the service;

(c)

the oral and documentary evidence produced in the course of the inquiry;

(d)

written briefs, if any, filed by the Presenting Officer, if any, or the member of the service or both during the course of the inquiry; and

(e)

the orders, if any, made by the disciplinary authority and the inquiring authority in regard to the inquiry.

8.

Action on the inquiry report.

(1)

The disciplinary authority, if it is not itself the inquiring authority may, for reasons to be recorded by it in writing remit the case to the inquiring authority for further inquiring and report and the inquiring authority shall thereupon proceed to hold the further inquiry according to the provisions of rule 7 as far as may be.

(2)

The disciplinary authority shall, if it disagrees with the findings of the inquiring authority or any article of charge, record its reasons for such disagreement and record its own findings on such charge, if the evidence on record is sufficient for the purpose.

(3)

If the disciplinary authority having regard to its findings on all or any of the articles of charge is of the opinion that any of the penalties specified in clauses (b) to (g) of sub-rule (1) of rule 4 should be imposed on the member of the service it shall, notwithstanding anything contained in rule 6 make an order imposing such penalty.

(4)

(i)

If the disciplinary authority having regard to its findings on all or any of the articles of charge, is of the opinion that any of the penalties specified in clauses (h) to (l) of sub-rule (1) of rule 4 should be imposed on the member of the service, it shall-

(a)

furnish to the member of the service copy of the report of the inquiry held by it and its findings on each article of charge, or, where the inquiry has been held by an inquiring authority appointed by it, a copy of the report of such authority and a statement of its findings on each article of charge together with brief reasons for its disagreement, if any, with the findings of the inquiring authority;

(b)

give the member of the service a notice stating the penalty proposed to be imposed on him and calling upon him to submit within fifteen days of receipt of the notice or such further time not exceeding fifteen days, as may be allowed, such representation as he may wish to make on the proposed penalty on the basis of the evidence adduced during the inquiry held under rule 7.

(ii)

The disciplinary authority shall consider the representation, if any, made by the member of the service in pursuance of the notice given to him under clause (i) of sub-rule (4) and determine what penalty, if any, should be imposed on him and make such order as it may deem fit.

9.

Communication of Orders.

- Orders made by the disciplinary authority shall be communicated to the member of the service who shall also be supplied with a copy of the report of the inquiry, if any, held by the disciplinary authority and a copy of its findings on each article of charge, or where the disciplinary authority is not the inquiring authority, a copy of the report of the inquiring authority and a statement of the findings of the disciplinary authority together with brief reasons for its disagreement if any, with the findings of the inquiring authority (unless they have already been supplied to him) and a brief statement of the reasons for such non-acceptance.

10.

Common Proceedings.

(1)

Where two or more members of service are concerned in any case, the Director of Fire Force may make an order directing that disciplinary action against all of them may be taken in a common proceedings.

(2)

Any such order shall specify-

(i)

the authority which may function as the disciplinary authority for the purpose of such common proceedings;

(ii)

the penalties specified in rule 4 which such disciplinary authority shall be competent to impose.

(iii)

whether the procedure laid down in rule 6 and rule 7 or rule 8 shall be followed in the proceedings.

11.

Special procedure in certain cases.

- Notwithstanding anything contained in rule 6 to rule 10-

(i)

where any penalty is imposed on a member of the service on the ground of conduct which has led to his conviction on a criminal charge; or

(ii)

where the disciplinary authority is satisfied for the reasons to be recorded by it in writing that it is not reasonably practicable to hold an inquiry in the manner provided in these rules; or

(iii)

where the disciplinary authority is satisfied that in the interest of the security of the state, it is not expedient to hold any inquiry in the manner provided in these rules, the disciplinary authority may consider the circumstances of the case and make such orders thereon as it deems fit.

12.

Provisions regarding officers borrowed from State Government, etc.

(1)

Where an order of suspension is made or a disciplinary proceeding is conducted against a member of the service whose services have been borrowed by one department from another department or from a State Government, the authority lending his services (hereinafter in this rule referred to as "the lending authority"), shall forthwith be informed of the circumstances leading to the order of the suspension of the member of service or of the commencement of the disciplinary proceeding, as the case may be.

(2)

In the light of the findings in the disciplinary proceedings conducted against the member of the service if the disciplinary authority is of the opinion that any of the penalties specified in clause (c) to (g) of sub-rule (1) of rule 4 should be imposed on him, it may, subject to the provisions of sub-rule (3) of rule 8 and after consultation with the lending authority pass such orders on the case as it may deem necessary, provided that-

(i)

in the event of a difference of opinion between the borrowing authority and the lending authority, the services of the member of the service shall be replaced at the disposal of the lending authority;

(ii)

if the disciplinary authority is of the opinion that any of the penalties specified in clauses (h) to (l) of sub-rule (1) of rule 4 should be imposed on the Government servant, it shall replace the service of such member of the service at the disposal of the lending authority and transmit to it the proceedings of the inquiry for such action as it may deem necessary.

13.

Suspension.

(1)

Notwithstanding anything contained in clause (i) of sub-rule (1) of rule 4, the appointing authority or any authority to which it is subordinate or the disciplinary authority or any other authority empowered in that behalf by the Government by general or special order, may place a member of the service under suspension-

(a)

where a disciplinary proceeding against him is contemplated or is pending; or

(b)

against whom an investigation, inquiry or trial relating to a criminal charge is pending and the charge is connected with his position as a member of the service or is likely to embarrass him in the discharge of his duties or involves moral turpitude.

(2)

A member of the service shall be deemed to have been placed under suspension by an order of appointing authority-

(a)

with effect from the date of his detention, if he is detained in custody whether on a criminal charge or otherwise, for a period exceeding forty-eight hours;

(b)

with effect from the date of his conviction, if, in the event of a conviction for an offence, he is sentenced to a term of imprisonment exceeding forty-eight hours and is not forthwith dismissed or removed or compulsorily retired consequent to such conviction.

Explanation:- The period of forty-eight hours referred to in clause (b) of this sub-rule shall be computed from the commencement of the imprisonment after the conviction and for this purpose, intermittent periods of imprisonment, if any, shall be taken into account.

(3)

Where a penalty of dismissal, removal or compulsory retirement from service imposed upon a member of the service under suspension is set aside in appeal under these rules and the case is remitted for further inquiry or action or with any other directions, the order of his suspension shall be deemed to have continued in force on and from the date of the original order of dismissal, removal or compulsory retirement as the case may be and shall remain in force until further order.

(4)

Where a penalty of dismissal, removal or compulsory retirement from service imposed upon a member of the service is set aside or declared or rendered void in consequence of or by a decision of a court of law and the disciplinary authority on a consideration of the circumstances of the case, decides to hold a further inquiry against him on the allegations on which the penalty of dismissal, removal or compulsory retirement was originally imposed, the member of the service shall be deemed to have been placed under suspension by the Appointing Authority from the date of the original order of dismissal, removal or compulsory retirement as the case may be and shall continue to remain under suspension until further orders.

(5)

(a)

An order of suspension made or deemed to have been made under this rule shall continue to remain in force until it is modified or revoked by the authority competent to do so.

(b)

Where a member of the service is suspended or is deemed to have been suspended (whether in connection with any disciplinary proceedings or otherwise), and any other disciplinary proceeding is commenced against him during the continuance of that suspension, the authority competent to place him under suspension may, for reasons to be recorded by him in writing, direct that the member of the service shall continue to be under suspension until the termination of all or any of such proceedings.

(c)

An order of suspension made or deemed to have been made under this rule may at any time be modified or revoked by the authority which made or is deemed to have made the order or by any authority to which that authority is subordinate.

Chapter - IV Procedure for Appeal and Appellate Authorities

14.

Orders against which no appeal lies.

- Notwithstanding anything contained in this part, no appeal shall lie against-

(i)

any order made by the Government;

(ii)

any order of an interlocutory nature of a step-in-aid or the final disposal of a disciplinary proceeding, other than an order of suspension;

(iii)

any order passed by an inquiring authority in the course of an inquiry under rule 7.

15.

Orders against which appeal lies.

- Subject to the provisions of rule 14, a member of the service may prefer an appeal against all or any of the following orders, namely:-

(i)

an order of suspension made or deemed to have been made under rule 13;

(ii)

an order imposing any of the penalties specified in rule 4 except those mentioned at clauses (a) and (b) of that rule, whether made by the disciplinary authority or by any appellate or reviewing authority;

(iii)

an order enhancing any penalty, imposed under rule 4;

(iv)

an order which-

(a)

denies or varies to his disadvantages his pay, allowances, pension or other conditions of service as regulated by rules or by agreement; or

(b)

interprets to his disadvantage the provisions of any such rule or agreement;

(v)

an order-

(a)

stopping at the efficiency bar in the time scale of pay on the ground of his unfitness to cross the bar;

(b)

reverting while officiating in a higher service, grade or post to a lower service, grade or post, otherwise than as a penalty;

(c)

reducing or withholding the pension or denying the maximum pension admissible to him under the rules;

(d)

determining the subsistence and other allowances to be paid to him for the period of suspension or for the period during which he is deemed to be under suspension or for any portion thereof;

(e)

determining his pay and allowances-

(i)

for the period of suspension; or

(ii)

for the period from the date of his dismissal, removal or compulsory retirement, from service, or from the date of his reduction to a lower service, grade, post, time-scale or stage in a time-scale or pay, to the date of his reinstatement or restoration of his service, grade or post; or

(f)

determining whether or not the period from the date of his suspension or from the date of his dismissal, removal, compulsory retirement or reduction to a lower service, grade, post, time-scale of pay or stage in a time-scale of pay to the date of his reinstatement or restoration to his service, grade or post shall be treated as a period spent on duty for any purpose.

Explanation:- In this rule-

(i)

the expression 'member of the service' includes a person who has ceased to be in service;

(ii)

the expression 'pension' includes additional pension, gratuity and any other retirement benefit.

16.

Appellate Authorities.

(1)

A member of the service including a person who has ceased to be in service, may prefer an appeal against all or any of the orders specified in rule 15 to the authority specified in this behalf in the Schedule.

(2)

Notwithstanding anything contained in sub-rule (1)-

(i)

an appeal against an order in a common proceeding held under rule 10 shall lie to the authority to which the authority functioning as the disciplinary authority for the purpose of that proceeding is immediately subordinate;

(ii)

where the person who made the order appealed against becomes, by virtue of his subsequent appointment or otherwise, the appellate authority in respect of such order, an appeal against such order shall lie to the authority to which such person is immediately subordinate.

17.

Period of limitation for appeals.

- No appeal preferred under rule 15 shall be entertained unless such appeal is preferred within a period of forty five days

from the date on which a copy of the order appealed against is delivered to the appellant:

Provided that the appellate authority may entertain the appeal after the expiry of the said period, if it is satisfied that the appellant had sufficient cause for not preferring the appeal in time.

18.

Form and contents of appeal.

(1)

Every person preferring an appeal shall do so separately and in his own name.

(2)

The appeal shall be presented to the authority to whom the appeal lies, a copy being forwarded by the appellant to the authority which made the order appealed against. It shall contain all material statements and arguments on which the appellant relies, shall not contain any disrespectful or improper language, and shall be complete in itself.

(3)

The authority which made the order appealed against shall on receipt of a copy of the appeal, forward the same with its comments thereon together with the relevant records to the appellate authority without any avoidable delay, and without waiting for any direction from the appellate authority.

19.

Consideration of appeal.

(1)

In the case of an appeal against an order of suspension under rule 13, the appellate authority shall consider whether in the light of the provisions of rule 13 and having regard to the circumstances of the case, the order of suspension is justified or not and confirm or revoke the order accordingly.

(2)

In the case of an appeal against an order imposing any of the penalties specified in rule 4 or enhancing any penalty imposed under the said rule, the appellate authority shall consider-

(a)

where the procedure laid down in these rules has been complied with and if not whether such non-compliance has resulted in the violation of any provisions of the Constitution of India or in the failure of justice;

(b)

whether the findings of the disciplinary authority warranted by the evidence on the record; and

(c)

whether the penalty or the enhanced penalty imposed is adequate, inadequate, or serve; and pass orders-

(i)

confirming, enhancing, reducing or setting aside the penalty; or

(ii)

remitting the case to the authority which imposed or enhanced the penalty or to any other authority with such direction as it may deem fit to the circumstances of the case:

Provided that-

(i)

if the enhanced penalty, which the appellate authority proposes to impose is one of the penalties specified in clause (h) to (l) of sub-rule (1) of rule 4 and an inquiry under rule 7 has not already been held in the case, the appellate authority shall, subject to the provisions of rule 11, itself hold such inquiry or direct that such inquiry be held in accordance with the provisions of rule 7 and thereafter, on a consideration of the proceedings of such inquiry and after giving the appellant a reasonable opportunity, as far as may be in accordance with the provisions of sub-rule (4) of rule 8, of making a representation against the penalty proposed on the basis of the evidence adduced during such inquiry, make such orders as it may deem fit;

(ii)

if the enhanced penalty which the appellate authority proposes to impose is one of the penalties specified in clauses (h) to (l) of sub-rule (1) of rule 4 and an inquiry under rule 7 has already been held in the case, the appellate authority shall after giving the appellant a reasonable opportunity, as far as may be, in accordance with the provisions of sub-rule (4) of rule 8, of making a representation against the penalty proposed on the basis of the evidence adduced during the inquiry, make such orders as it may deem fit; and

(iii)

no order imposing an enhanced penalty shall be made in any other case unless the appellant has been given a reasonable opportunity as far as may be in accordance with the provisions of rule 6, of making a representation against such enhanced penalty.

(3)

In an appeal against any other order specified in rule 15, the appellate authority shall consider all the circumstances of the case and make such orders as it may deem just and equitable.

Chapter - V Procedure to be followed for implementation of penalties

20.

Implementation of Orders in Appeal.

- The authority which made the order appealed against shall give effect to the orders passed by the appellate authority.

21.

Service of Orders, Notices, etc.

- Every order, notice and other process made or issued under these rules shall be served in person on the member of the service concerned or communicated to him by registered post.

22.

Power to relax time limit and to condone delay.

- Save as otherwise expressly provided in these rules, the authority competent under these rules to make any order may, for good and sufficient reasons or if sufficient cause is shown, extend the time specified in these rules for anything required to be done under these rules or condone any delay.

23.

Desertion.

(1)

Absence without leave of any member of the service for 21 days shall be considered to complete the offence of desertion, after which his name shall invariably be struck off from the duty roll.

(2)

An application for reinstatement from a member of the service whose name has been struck off as a deserter shall not be entertained unless it reaches the Director of Fire Force within two months of the date of the commencement of the absence without leave. The Director shall not reinstate a deserter-

(i)

until the deserter has attended in person; and

(ii)

the deserter has given his explanation for the absence without leave; and

(iii)

he is satisfied, after such inquiry as may be necessary, that the case deserves reconsideration.

(3)

If no application is received within two months and if the whereabouts of the deserter are not known, the Director of Fire Force shall record in writing the reasons for his being satisfied that it is not reasonably practicable to give the deserter an opportunity of showing cause against his dismissal and then confirm the dismissal. In other cases a charge shall be framed and the procedure, prescribed in rule 7 shall be complied before confirming the dismissal or reinstating the deserter with or without punishment.

24.

Removal of doubts.

- If any doubt arises as to the interpretation of any of the provisions of these rules, the matter shall be referred to the authority as may be specified by the Government by a general or special order, and the authority shall decide the same.

Schedule

Sl. No.

Description of post

Appointing Authority

Authority competent to impose penalties and

penalties which it may impose

Appellate Authority

Authority

Penalties

1

2

3

4

5

6

1.

All Group 'C' and 'D' posts

Director of Fire Services

1) Director of Fire Services

2) Assistant Divisional Officer

Major

Minor

Chief Secretary

Director of Fire Services

Annexure I

(i)

Buildings over 14.2 metres in height;

(ii)

Factories and establishments, where electric motor capacity exceeds 5 H. P. and above;

(iii)

Shipyards and Work-shops;

(iv)

Tank farms of petroleum products/POL dispensing outlets;

(v)

Flammable gas godown/L. P G. gas godowns;

(vi)

Godowns and warehouses;

(vii)

Public places like exhibition halls, entertainment places, dancing halls, theatres, assembly halls, seaport, airport, railway stations, bus stations, stadium, etc.;

(viii)

Educational and institutional places;

(ix)

Hotels, restaurants and bakeries;

(x)

Storage places of flammable and hazardous goods.

Annexure II

Fire prevention measures to be adopted in the Buildings/Premises and Establishments specified in Annexure I

The minimum standard measures for fire prevention and fire safety for buildings/premises shall be as provided in the National Building Code, 1983 Part IV Fire Protection, as notified in the Building Bye-laws and the Code of Practices for fire safety stipulated by the Bureau of Indian Standards, as amended from time to time thereafter, relating to the following matters:

(i)

Means of access and exit requirements;

(ii)

Underground/overhead water static tank;

(iii)

Fire Service standard inlet connections;

(iv)

First aid hose reel.

(v)

Automatic sprinkler system;

(vi)

Fire extinguishers of ISI certification mark;

(vii)

Compartmentation;

(viii)

Automatic fire detection and fire alarm system/manually operated fire alarm system;

(ix)

Illuminated exit way marking signs;

(x)

Fire check doors and fire resistance doors;

(xi)

Public address system;

(xii)

Alternate source of electric supply;

(xiii)

Fire lift with Fireman switch;

(xiv)

Wet riser-cum-down-comer system;

(xv)

Explosion Suppression/venting system.

List of places and trades for which no objection certificate from the Fire Service is necessary

Serial number and purpose for which licence,

permission or registration is required

Remarks

(1)

(2)

(1)

Large hotels, Restaurants, Bakeries and eating houses where the rental value of the building exceeds Rs. 1500/-

...

(2)

Fish oil-machine power

...

(3)

Other oil-machine power

...

(4)

Boiling camphor or oil by machine power

...

(5)

Manufacture of ice

...

(6)

Storing, packing, pressing, cleansing, preparing or manufacturing by any process whatever.

...

- (7)
Ammunition
...
- (8)
Chlorate mixture
...
- (9)
Explosive (Storing)
...
- (10)
Fulminate of mercury
...
- (11)
Gun cotton
...
- (12)
Gun powder
...
- (13)
Nitro-compound
...
- (14)
Nitro-glycerine
...
- (15)
Nitro-mixture
...
- (16)
Fire-works preparing or manufacturing or storing
...
- (17)
Manufacture of crackers
...
- (18)
Camphor
...
- (19)
Salt peter
...
- (20)
Sulphur (including melting)
...
- (21)
Fire works
...
- (22)
Matches
...
- (23)
Flax
...

(24)

Hemp

...

(25)

Jute

...

(26)

Skins

...

(27)

Gas

...

(28)

Chemical preparations carbolic acid, Hydrochloric acid, Nitric acid, Pyritic acid, Sulphuric acid, Caustic potash, Caustic soda, Chemical fertilizers, Benzol, Bromoform, Chloroform, Iodoform, Glycerine, Acetone, Nitro, Nitrol, Perchloride or Mercury, Chloride or Potash, etc., etc.

...

(29)

Cigars and Cigarettes

...

(30)

Beedies

...

(31)

Manufacturing articles from which offensive or unwholesome smell, fumes, dust or noise arise (Kumkums)

...

(32)

Carpentry and cabinet making

...

(33)

Printing, composing, binding, etc.

Where Lino type or other allied machines are used such as monotype, wherein the process of melting and casting is involved or using above 10 horse power of motor.

(34)

Storing, dumping, curing, cleansing etc.

Where licence fee is levied Rs. 200/- and above for storage of cycle tyres and tubes above 500.

(35)

Steam engines and Boilers to construct or establish any factory workshop or work place in which it is proposed to employ steam power, water power or other mechanical power or electric power

...

(36)

Using for any industrial purpose fuel or machine power Exceeding 20 horse power.

(37)

Baling presses

For each baling press worked by machine power.

(38)

Cinema studio

...

(39)

Combustible material storage

For storing celluloid, celluloid goods and other combustibles.

(40)

Cinematographic films-Storing, transporting, handling, examining, repairing and exhibiting

...

(41)

Storing ordinary Camera Roll Films and X-Ray films

...

(42)

Petroleum products-Storing, packing, pressing, cleansing, preparing or, manufacturing by any process whatsoever non-dangerous petroleum (between 76°F and 150°F) When the quantity to be stored exceeds 1000 lbs. or 2200 kgs.

(43)

(I) Non-dangerous Petroleum

...

(a) Kerosene oil

...

(b) Mineral Turpentine

...

(c) Powerline (Power kero)

...

(d) Furnace oil

...

(e) Vapourising oil

...

(f) Aviation turbine fuel 650

...

(g) Mobile power oil, etc.

...

(II) Heavy Petroleum

...

(a) High speed diesel oil (H. S. D.)

...

(b) Light diesel oil (L. D. O.)

...

(c) Furnace oil

...

(d) Tea drier oil

...

(e) Grease, etc.

...

(III) Heavy oils (A)

...

(a) Lubricating oils

...

(b) Vaseline

...

(c) Petroleum jellies

...

(d) White oils

...

(e) Grease, etc.

...

(44)

Dyes (Vegetable or chemical) Storing, selling, keeping etc.

...

(45)

Paper (Printing, writing, including news print paper, card boards, etc.) storing, selling in retail or wholesale

For each place 250 lbs for and 550 kgs. and above.

(46)

Silk (Rayon, Nylon, etc.) manufactured by any process whatever

...

(47)

Silk (Rayon, Nylon, etc. Waste or Soiled)-storing, selling in retail or wholesale.

...

(48)

Cloth (textile, cotton, garments, dress, apparels, etc.)

storing, selling in retail or wholesale, manufacturing by any process whatsoever

By powerlooms

(49)

Rubber (goods such as sheet, cloth, toys, shoes, etc.)

manufacturing by any process whatsoever

By machine power

(50)

Studio-Cinemas, etc. Cinema House, equipped with reproducing of sound with amplifiers, by projectors where public are admitted for amusement, entertainment, etc.

...

(51)

Fertilizers (Chemical preparation of any kind)-Manufacturing, packing, mixing, pressing, selling or storing in retail or wholesale.

...

(52)

Paints (including distemper, varnish, spirits, linseed oils, polishes, etc.) Manufacturing, mixing, packing, pressing, cleansing by any process whatsoever.

...

(53)

Paints (including distemper, varnish, spirits, linseed oils, polishes, etc.) storing, selling in retail or wholesale.

...

(54)

Metals-melting, lead, beating, breaking, hammering, casting, etc. metals.

Not applicable for beating Gold.

(55)

Automobile shops - repairing, building, assembling ? By power cleansing, etc. automobiles.

...

Order

No. 3/6/90-HD (G). - Government is pleased to approve the enclosed scheme for grant of awards/rewards to Fire Officers of and below the rank of Station Fire Officers for doing outstanding good work requiring exemplary courage, skill or initiative while conducting rescue and fire fighting operations.

The expenditure towards the same will be met from the grants of the Directorate of Fire Services from time to time.

This issues with the concurrence of the Finance (Expenditure) Department vide their U. O. No. Fin (Exp)/7001/92 dated 27-11-1992.

Scheme for Grant of Awards/Rewards to Fire Service Personnel

1. Rewards will be granted to Fire Officers of and below the rank of Station Fire Officers:-

Rewards will be ordinarily granted for:-

(a)

doing outstanding good work requiring exemplary courage, skill or initiative while conducting rescue and fire fighting operation.

(b)

doing work of a less outstanding nature, but requires promptitude, honesty and intelligence in mitigating damage on account of fire/allied emergencies.

(cip which is, in the opinion of the officer competent to grant rewards, deemed appropriate to promote the efficiency of the members of the staff.

2. Rewards may in certain cases where the official has executed smartness and diligence in the performance/workmanship also be offered and granted to private persons for the good work done in connection with the extinction and prevention of fire.

3. Grant of Rewards. - (a) The Director, Fire and Emergency Services may issue commendatory note to any Fire Official irrespective of rank and also grant cash rewards upto Rs. 1,000/- (Rupees one thousand only) in any one case/incident on special events involving skill and devotion to duties. However, the maximum amount of reward sanctioned by the Director, Fire and Emergency Services to any one individual will not exceed Rs. 250/- (Rupees two hundred and fifty only). (Incidents involve number of people since it is a team work).

(b)

The Secretary, Home Department may grant commendatory note in any one case or to any fire official irrespective of rank and also reward upto Rs. 5000/- (Rupees five thousand only) in any one case or to any one person. Rewards above Rs. 5000/- are to be sanctioned by the Government on the recommendation of the Director of Fire and Emergency Services.

4. Rewards offered by private parties:- Permission to accept special rewards by private parties may be granted by the Director, Fire and Emergency Services. Whether the reward should go to the individual concerned or to the Fire Service Benevolent Fund/Welfare Fund or to any of the Sports or recreation club or partly to each will be decided by the Director, Fire and Emergency Services in consultation with Administrative Secretary of the Department.

5. Rewards by other Departments:- Rewards granted to subordinate officers by officers of other Departments may be disbursed to them directly under intimation to the Director.

6. Publication:- The details of awards given by the Government, other Departments or Director, Fire and Emergency Services shall be published through a Departmental Circular and entering its details in their service records.

Notification

3.

/5/97-HD(G). - In exercise of the powers conferred by sub-section (1) of section 13 of the Goa, Daman and Diu Fire Force Act, 1986 (Act

9 of 1986

), the Government of Goa, being of the opinion that the commercial/industrial units and high rise buildings as specified in Annexure I hereto are likely to cause risk of fire, hereby requires all owners/occupiers of said commercial/industrial units and high rise buildings specified in said Annexure I, to take such precautions as are specified in Annexure II hereto.

Related AI tags, queries and research notes

Translation